

**BEFORE THE BEHAVIORAL HEALTH PROFESSIONALS BOARD
OF THE STATE OF IOWA**

IN THE MATTER OF LINDA DIANE LAWMAN License No. 094729 RESPONDENT	CASE NO.: 22-0202 DIAL NO.: 26DBBH0012 NOTICE OF HEARING AND STATEMENT OF CHARGES
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COMES NOW the Iowa Board of Behavioral Health Professionals (“Board”) and files this Notice of Hearing and Statement of Charges against Linda Lawman (“Respondent”), pursuant to Iowa Code sections 17A.12(2), 17A.18(3), and 272C.3(1)(e), and 481—506.5.

A. TIME, PLACE AND NATURE OF HEARING

1. **Hearing.** A contested case shall be held virtually starting at 9:00 a.m. on June 1, 2026. The link to participate virtually is <https://meet.google.com/xyo-zbgj-gfo> or you may dial 470-771-3038 (PIN: 395 807 752#). You must be able to utilize the video-function and be on camera for the duration of the hearing. This case has been delegated to the Administrative Hearings Division. If you have trouble connecting, you may call 515-281-6468 or email adminhearings@dia.iowa.gov. If you wish to request that this matter be converted to an in-person hearing, you may make this request at the earliest opportunity by contacting the Administrative Hearings Division at adminhearings@dia.iowa.gov.
2. **Answer.** Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges, you may file an Answer. In that Answer, you should also state whether you will request a continuance of the date and time of the hearing.
3. **Filing of Pleadings.** The procedural rule governing the filing of motions or other pleadings is found at Iowa Administrative Code rule 481-506.16. All prehearing motions must be in writing and filed electronically using the Administrative Electronic Document Management

System (adminhearings.iowa.gov/efile/) or by using the following contact information:

Administrative Hearings Division, Central Panel Bureau
6200 Park Avenue, Suite 100, East Entrance
Des Moines, Iowa 50321
Phone: 515-281-6468
Fax: 515-281-4477
Email: adminhearings@dia.iowa.gov

4. **Presiding Officer.** The Iowa Board of Behavioral Health Professionals voted unanimously to delegate this matter to the Administrative Law Judge from the Administrative Hearings Division of the Department of Inspections, Appeals and Licensing, to hear this disciplinary matter as well as any pre-hearing matters which may be filed by any parties. The Administrative Law Judge shall serve as presiding officer at the contested case hearing, as well as make initial rulings on prehearing matters.

5. **Prehearing Conference.** Any party may request a prehearing conference to discuss evidentiary issues related to the hearing in accordance with Iowa Administrative Code 481—506.17.

6. **Hearing Procedures.** The procedural rules governing the conduct of the hearing are found at Iowa Administrative Code rule 481—506.19. At the hearing, you may appear personally or be represented by legal counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at hearing. If you need to request an alternative time or date for hearing, you must comply with the requirements of Iowa Administrative Code rule 481—506.19. The hearing may be open to the public or closed to the public at the discretion of the Respondent.

7. **Witness and Exhibits.** The parties must file and exchange witness and exhibit lists, as well as copies of all proposed exhibits, at least five days prior to the hearing date, by using the

Administrative Electronic Management System ((adminhearings.iowa.gov/efile/) or by emailing the Administrative Hearings Division at adminhearings@dia.iowa.gov.

8. **Prosecution.** The Office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Pleadings shall be filed with the Board and copies should be provided to counsel for the State at the following address: David Merchan, Assistant Attorney General, 1305 E. Walnut Street, Des Moines, Iowa 50319; david.merchan@ag.iowa.gov.

9. **Communications.** You may not contact Board members in any manner, including by phone, letter, facsimile, in person or e-mail, about this Notice of Hearing and Statement of Charges. Board members may only receive information about the case when all parties have notice and an opportunity to participate, such as at the hearing or in pleadings you file with the Board and serve upon all parties in the case. You may contact Tony Alden, Board Executive, Iowa Board of Behavioral Health Professionals, at 515-281-4401 or by email at tony.alden@dia.iowa.gov, or Assistant Attorney General David Merchan at 515-281-6662 or by email at david.merchan@ag.iowa.gov.

B. LEGAL AUTHORITY AND JURISDICTION

10. **Iowa License.** Respondent was issued Iowa mental health counselor license no. 094729 on December 29, 2021. Respondent's Iowa mental health counselor license expired on September 30, 2024.

11. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapter 154D.

12. **Legal Authority.** If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapter 154D and Iowa Administrative Code rule 481—893.1.

13. **Default.** The Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code Section 17A.12(3) and Iowa Administrative Code rule 481—506.21.

C. STATEMENT OF CHARGES

COUNT I

14. Respondent is charged under 481 Iowa Administrative Code rule 882.1(1)(b) for failure to comply with the current Code of Ethics of the American Counseling Association.

D. STATEMENT OF THE MATTERS ASSERTED

15. **Practice Setting.** Respondent was an Iowa licensed mental health counselor who practiced mental health counseling in Grundy Center, Iowa, during the time period relevant to these allegations. Respondent currently lives at Ames, Iowa.

16. **Allegations.** A short and plain Statement of the Matters Asserted (Statement) was reviewed and approved by the Board at the time this Notice of Hearing and Statement of Charges was filed. The Statement shall be furnished to Respondent as an attachment to this Notice of Hearing and Statement of Charges. However, the Statement is not a public record pursuant to Iowa Code section 272C.6(4)(a).

E. SETTLEMENT

17. This matter may be resolved by settlement agreement pursuant to Iowa Administrative Code rule 481-506.35. Settlement negotiations may be initiated by any party at any stage of a contested case. The Assistant Attorney General representing the state of Iowa as identified above is authorized to negotiate on behalf of the board. Settlement agreements must be submitted to the Board for approval. It is the parties' responsibility to notify the Administrative Hearings Division

at adminhearings@dia.iowa.gov regarding any settlement agreement pending before the Board for this case.

F. PROBABLE CAUSE FINDING

18. On July 29, 2025, the Iowa Board of Behavioral Health Professionals found probable cause to file this Notice of Hearing and Statement of Charges.

Dated this 29th day of July, 2025.



Aaron Culley, Chairperson
Iowa Board of Behavioral Health Professionals

Copy to:

Assistant Attorney General David Merchan

PLEASE NOTE: If you require the assistance of auxiliary aids or services to participate in this matter because of a disability, immediately call 515-281-0233. (If you are hearing impaired, call Relay Iowa TTY at 1-800-735-2942).